

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4280

By: Miller

AS INTRODUCED

An Act relating to roads and bridges; amending 69 O.S. 2021, Section 1521, as amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025, Section 1521), which relates to the Rebuilding Oklahoma Access and Driver Safety Fund; increasing apportionment to ROADS Fund; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 69 O.S. 2021, Section 1521, as amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025, Section 1521), is amended to read as follows:

Section 1521. A. There is hereby created in the State Treasury a fund to be known as the "Rebuilding Oklahoma Access and Driver Safety Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all appropriations and transfers made by the Legislature. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department of Transportation for the purposes authorized by subsection D of this section in amounts as authorized

1 by the Oklahoma Legislature. Expenditures from the fund shall be
2 made upon warrants issued by the State Treasurer against claims
3 filed as prescribed by law with the Director of the Office of
4 Management and Enterprise Services for approval and payment.

5 B. Beginning July 1, 2021, except for an amount equivalent to
6 the amount of revenue apportioned to the Rebuilding Oklahoma Access
7 and Driver Safety Fund pursuant to Section 500.4B of Title 68 and
8 Section 1104 of Title 47 of the Oklahoma Statutes and from other
9 sources apportioned to the Fund by law, there shall be apportioned
10 to the funds specified in this subsection from the monies that would
11 otherwise be apportioned to the General Revenue Fund by Section 2352
12 of Title 68 of the Oklahoma Statutes from the revenues derived
13 pursuant to subsections A, B and E of Section 2355 of Title 68 of
14 the Oklahoma Statutes amounts as follows:

15 1. Subject to any reductions required by subsection C of this
16 section, there shall be apportioned to the Rebuilding Oklahoma
17 Access and Driver Safety Fund:

18 a. for the fiscal year beginning July 1, 2021, and for
19 each fiscal year thereafter, Eighty Million Dollars
20 (\$80,000,000.00), which shall be allocated and used by
21 the Department of Transportation first for the purpose
22 of making any required payments for principal,
23 interest or other costs of borrowing with respect to
24 the obligations issued pursuant to Section 341 of

1 Title 73 of the Oklahoma Statutes and after any such
2 required payment has been made then for the purposes
3 otherwise authorized by this section, plus

4 b. the total amount apportioned to the Rebuilding
5 Oklahoma Access and Driver Safety Fund for the
6 preceding fiscal year which, except for the amount
7 prescribed by subparagraph a of this paragraph, shall
8 be apportioned before any other amount is apportioned
9 pursuant to Section 2352 of Title 68 of the Oklahoma
10 Statutes, plus

11 c. an additional amount that is required in order for the
12 total apportionment to the Rebuilding Oklahoma Access
13 and Driver Safety Fund from all sources for such
14 fiscal year to equal:

15 (1) Five Hundred Seventy-five Million Dollars
16 (\$575,000,000.00) for the fiscal year beginning
17 July 1, 2021,

18 (2) Five Hundred Ninety Million Dollars
19 (\$590,000,000.00) for the fiscal year beginning
20 July 1, 2022, ~~and~~

21 (3) Six Hundred Ten Million Dollars (\$610,000,000.00)
22 for the fiscal year beginning July 1, 2025, and
23 ~~for each fiscal year thereafter~~
24

1 (4) Six Hundred Seventy Million Dollars
2 (\$670,000,000.00) for the fiscal year beginning
3 July 1, 2026, and for each fiscal year
4 thereafter.

5 All amounts apportioned pursuant to this paragraph shall be
6 divided into twelve equal amounts to be apportioned each month
7 during the fiscal year except the amount specified in subparagraph a
8 of this paragraph which amount shall be allocated in its full amount
9 in cash not later than July 30 each year or such later date as may
10 be required in order for the amount to be allocated in cash; and

11 2. For each fiscal year after the apportionments required by
12 paragraph 1 of this subsection have been made:

13 a. the next Two Million Dollars (\$2,000,000.00) shall be
14 apportioned to the Oklahoma Tourism and Passenger Rail
15 Revolving Fund created pursuant to Section 325 of
16 Title 66 of the Oklahoma Statutes to be used for
17 capital and operating costs for the "Heartland Flyer"
18 rail project, and

19 b. the next Three Million Dollars (\$3,000,000.00) shall
20 be apportioned to the Public Transit Revolving Fund
21 created pursuant to Section 4031 of this title to be
22 used for purposes authorized by law other than the
23 purpose described by subparagraph a of this paragraph.
24

1 All amounts apportioned pursuant to this paragraph shall be
2 divided into twelve equal amounts to be apportioned each month
3 during the fiscal year.

4 C. In the event that the Director of the Office of Management
5 and Enterprise Services declares a General Revenue Fund revenue
6 failure pursuant to Section 34.49 of Title 62 of the Oklahoma
7 Statutes, and agency allocations are reduced pursuant to the
8 provisions of Section 34.49 of Title 62 of the Oklahoma Statutes,
9 the amounts that would otherwise be apportioned to the ROADS Fund
10 by:

11 1. Subparagraph a of paragraph 1 of subsection B of this
12 section, only to the extent that the amount is not required for debt
13 service related to the obligations authorized pursuant to Section
14 ~~341 151 et seq.~~ of Title 73 of the Oklahoma Statutes, ~~Section 350~~
15 ~~350.1 of Title 73 of the Oklahoma Statutes and Section 1 of Enrolled~~
16 ~~House Bill No. 2896 of the 1st Session of the 58th Oklahoma~~
17 ~~Legislature;~~

18 2. Subparagraphs b and c of paragraph 1 of subsection B of this
19 section; and

20 3. Subparagraphs a and b of paragraph 2 of subsection B of this
21 section,
22 shall be reduced by a percentage equal to that required of the
23 General Revenue Fund appropriations to state agencies and such
24 reductions shall occur during the entire fiscal year and for any

1 month during which such reductions are required by the Office of
2 Management and Enterprise Services and by the same percentage as
3 that required of the agencies for such General Revenue Fund
4 appropriations.

5 D. The Department of Transportation shall use the monies in the
6 Rebuilding Oklahoma Access and Driver Safety Fund for:

7 1. The construction and maintenance of state roads, bridges and
8 highways;

9 2. The direct expenses of operating and maintaining the state
10 highway system, including bridges;

11 3. Direct expenses incurred in constructing, repairing, and
12 maintaining state highways, farm-to-market roads, county highways
13 and bridges as authorized by law;

14 4. Matching federal funds;

15 5. The purchase of materials, tools, machinery, motor vehicles,
16 and equipment necessary or convenient for the construction and
17 maintenance of the state highway system and bridges;

18 6. Debt service incurred prior to January 1, 2006, for Capital
19 Improvement Program bonds sold pursuant to Section 2001 of this
20 title;

21 7. Debt service incurred on or after July 1, 2009, with respect
22 to obligations authorized to be issued pursuant to Section ~~341~~ 151
23 et seq. of Title 73 of the Oklahoma Statutes, ~~Section 350 of Title~~
24

~~73 of the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st Session of the 58th Oklahoma Legislature; and~~

8. For fiscal years beginning on or after July 1, 2025, and ending on or prior to June 30, 2033, Twenty Million Dollars (\$20,000,000.00) per fiscal year for the construction, repair, and maintenance of weigh stations on the state highway system.

E. From the monies allocated pursuant to the provisions of subparagraph a of paragraph 1 of subsection B of this section each fiscal year, the Department of Transportation shall make payments required for the payment of principal, interest and other costs related to the obligations issued by the Oklahoma Capitol Improvement Authority as authorized by Section 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st Session of the 58th Oklahoma Legislature, and such payments shall be made by the Department each fiscal year before such monies are used for any other purpose.

F. In the event that the Department of Transportation must delay projects or remove projects from its Eight-Year Construction Work Plan outside its normal adjustments, it shall notify in writing the Governor, the Speaker of the Oklahoma House of Representatives, the President Pro Tempore of the Oklahoma State Senate, the Appropriations and Budget Chair of the Oklahoma House of Representatives, and the Appropriations Chair of the Oklahoma State

Senate, and both the House member and Senate member whose district the project resides in. A copy of such notice shall be on file at the ODOT District Office overseeing the project. The notice shall include:

1. A project description detailing the original project and what is being adjusted or removed;

2. An explanation of why the adjustment or removal is being made;

3. The amount of funding needed to keep the project in its original scope and timeline; and

4. How this change affects the Asset Preservation Plan.

Such notice shall be provided within one (1) week of the Transportation Commission's meeting approving the updated Eight-Year Construction Work Plan, where such delays or removals are approved.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

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